



SPONSOR: Rep. Gorman & Sen. Seigfried
Reps. Morrison, Snyder-Hall, Romer, Berry, Griffith,
Phillips, Heffernan; Sens. Hoffner, Mantzavinos, Cruce

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 151

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO DETENTION FACILITIES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 6503, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 6503. Definitions.

As used in this chapter:

(4) “Detention facility” means any facility in which persons are incarcerated or otherwise involuntarily confined for purposes of execution of a punitive sentence imposed by a court or detention pending a trial, hearing, or other judicial or administrative proceeding.

(5) “Private detention facility” means a detention facility that is operated by a private, nongovernmental, for-profit entity, and operating pursuant to a contract or agreement with a governmental entity. A private detention facility does not include:

a. Any facility providing rehabilitative, counseling, treatment, mental health, educational, or medical services to a juvenile that is under the jurisdiction of the Family Court pursuant to Chapter 9 of Title 10.

b. Any facility providing evaluation or treatment services to a person who is detained or subject to an order of commitment by a court, pursuant to Chapter 50 of Title 16.

c. Any facility providing educational, vocational, medical, or other ancillary services to an inmate in the custody of, and under the direct supervision of, the Department of Correction or other law enforcement agency.

d. A residential care facility licensed pursuant to Chapter 22 of Title 16.

e. Any school facility used for the disciplinary detention of a pupil.

f. Any facility used for the quarantine or isolation of persons for public health reasons pursuant to § 3136 of Title 20.

Section 2. Amend Subchapter XI, Chapter 65, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 6593. Private detention facilities; prohibited.

A person may not operate a private detention facility within the State.

SYNOPSIS

This Act prohibits the operation of private detention facilities in the State of Delaware.